

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
VINCENT FINA,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD DETECTIVE OLIVER
MUIR (Shield # 5809); NYPD OFFICER DAVID
RODRIGUEZ (Tax Reg. # 957090); NYPD DETECTIVE
PIERCE (Shield #1516) (f/n/u), NYPD DETECTIVE
MOLLEUR (Shield # 181) (f/n/u), and NYPD OFFICERS
JOHN and JANE DOE #'s 1-12 (names and numbers unknown
at this time), and Other Unidentified members of the New
York City Police Department,

Plaintiff Designates
Kings County
as the place of trial

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 10, 2022

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD DETECTIVE OLIVER MUIR (Shield # 5809), 62nd Detective Squad, 62nd Precinct, 1925 Bath Avenue, Brooklyn, NY, 11214-4714

NYPD OFFICER DAVID RODRIGUEZ (Tax Reg. # 957090), 62nd Precinct, 1925 Bath Avenue, Brooklyn, NY, 11214-4714

NYPD DETECTIVE PIERCE (Shield #1516) (f/n/u), Central Investigations Division, 1 Police Plaza, Manhattan, NY 10038

NYPD DETECTIVE MOLLEUR (Shield # 181) (f/n/u), Central Investigations Division, 1 Police Plaza, Manhattan, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
VINCENT FINA,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE OLIVER
MUIR (Shield # 5809); NYPD OFFICER DAVID
RODRIGUEZ (Tax Reg. # 957090); NYPD DETECTIVE
PIERCE (Shield #1516) (f/n/u), NYPD DETECTIVE
MOLLEUR (Shield # 181) (f/n/u), and NYPD OFFICERS
JOHN and JANE DOE #'s 1-12 (names and numbers unknown
at this time), and Other Unidentified members of the New
York City Police Department,

Defendants.
-----X

Plaintiff **Vincent Fina**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights and common law rights when the individually named police defendants subjected him to, among other things, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff

seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of Kings County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD DETECTIVE OLIVER MUIR, assigned Shield # 5809, who at the time of this incident was employed with the 62nd Detective Squad, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD DETECTIVE OLIVER MUIR (Shield # 5809) is being sued in his individual capacity and official capacity.
6. NYPD OFFICER DAVID RODRIGUEZ, assigned Tax Registration # 957090, who at the time of this incident was employed with the 62nd Precinct, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD OFFICER DAVID RODRIGUEZ (Tax Reg. # 957090) is being sued in his individual capacity and official capacity.
8. NYPD DETECTIVE PIERCE (f/n/u), assigned Shield # 1516, who as the time of the incident was employed with the 62nd Precinct, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. NYPD DETECTIVE PIERCE (Shield # 1516) is being sued in his individual capacity and official capacity.

10. NYPD DETECTIVE MOLLEUR, assigned Shield # 181, who at the time of this incident was employed with the 62nd Precinct, and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. NYPD DETECTIVE MOLLEUR (Tax Reg. # 181) is being sued in his individual capacity and official capacity.
12. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
13. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
14. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
15. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New

York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

18. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
20. The City of New York held a 50(h) hearing examination of Plaintiff on June 15, 2020.

STATEMENT OF FACTS

21. On February 13, 2019 at approximately 4:30 a.m. inside of the Auburn Shelter, 30 Auburn Place in Kings County, New York, numerous police officers from the 62nd Precinct, 62nd Detective Squad, Detective Borough Brooklyn South, and other unknown police commands, including upon information and belief, defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
22. On February 13, 2019 at approximately 4:30 a.m., Plaintiff and his wife were asleep inside of their room at the Auburn Shelter, located at 39 Auburn Place in Brooklyn, New York. At that time, numerous NYPD defendant officers burst into Plaintiff's room with their firearms drawn and pointed at Plaintiff and his wife.
23. This entry was illegal, and was conducted without a valid warrant, probable cause or reasonable suspicion that the Plaintiff and/or his wife had committed any violation or crime. Among those

illegally entering Plaintiff's room were, upon information and belief, at least three of the following NYPD Defendants: NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), and NYPD Detective Molleur (Shield # 181)

24. The NYPD Defendants, with the firearms continually pointed at Plaintiff and his wife, instructed Plaintiff to dress, and he was then immediately handcuffed and placed under arrest. This arrest was illegal as it was conducted without a valid warrant, probable cause or reasonable suspicion that the Plaintiff had committed any violation or crime. Plaintiff was informed he was being arrested for a robbery. No proceeds of any alleged robbery were found in Plaintiff's possession or in the room where he was arrested.
25. Plaintiff was taken in an NYPD vehicle to the NYPD 62nd Precinct. Upon information and belief, Plaintiff remained handcuffed for approximately nine hours while waiting to speak to defendant NYPD Detective Molleur at the 62nd Precinct.
26. Defendant Detective Molleur eventually informed Plaintiff that he had been arrested for a robbery that occurred on February 11, 2019 in the area of 86th Street and 25th Avenue in Brooklyn, New York. Plaintiff informed Detective Molleur that he had not committed the robbery, and, in fact, had been at a medical appointment with his son at the time the robbery took place.
27. Upon information and belief, Detective Molleur made no attempt to verify this alibi prior to Plaintiff's arraignment on the criminal charges.
28. Upon information and belief, defendant Detective Molleur insisted on multiple occasions that Plaintiff write out a confession to the robbery. Plaintiff declined to do so.
29. Thereafter, Plaintiff was transported to Brooklyn Central Booking. While Plaintiff was incarcerated at the 62nd precinct and Brooklyn Central Booking, NYPD defendants, including

arresting officer Detective Oliver Muir, falsely and maliciously told the Kings County District Attorney's Office that Plaintiff had committed the crimes of Robbery in the First and Third Degrees, Grand Larceny in the Fourth Degree, Menacing in the Second and Third Degrees, Petit Larceny, Criminal Possession of Stolen Property in the Fifth Degree, and the violation of Harassment in the Second Degree. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.

30. Upon information and belief, Defendant NYPD Detectives Muir and Molleur also failed to inform the Kings County District Attorney's office of Plaintiff's statements regarding his alibi for the time the incident occurred.
31. At his arraignment, bail was set and Plaintiff was detained at Rikers Island for eight months and five days, and made approximately four court appearances for the criminal case at issue. The case was dismissed on August 30, 2019. Because of his parole hold, Plaintiff remained in custody until October 26, 2019.
32. Upon information and belief, while Plaintiff remained illegally detained during the malicious prosecution of the robbery charge, defendant NYDP officers Plaintiff's alibi that he was at a medical appointment with his son at the time of the robbery. Defendant officers did not convey this information to the District Attorney's office in a timely manner.
33. In the alternative, defendant NYPD Officers never made any attempt to verify Plaintiff's alibi during the pendency of the case in Kings County criminal court.
34. During the pendency of Plaintiff's criminal case, defendant NYPD officers obtained a photograph of the actual perpetrator of the robbery. This photograph clearly demonstrated that the person who committed the robbery was not Plaintiff because of the significant differences in appearance between the perpetrator and Plaintiff.

35. Upon information and belief, defendant NYPD police officers did not provide this photograph to the Kings County District Attorney's office in a timely manner.
36. As a direct result of Plaintiff's false arrest and malicious prosecution, Plaintiff remained in custody for over eight months, during which time was assaulted approximately ten times by fellow inmates. He lost his job as an electrician where he made approximately \$900 weekly, his marriage dissolved, and Plaintiff was forced to engage in court proceedings involving the custody of his son. Plaintiff was unable to secure employment for an additional six months after his release from custody. Plaintiff continues to suffer severe emotional trauma from his illegal arrest and malicious prosecution, and his time in custody, including, but not limited, inability to sleep and fear of the police. Since his release from custody, Plaintiff has been receiving therapy and mental health counseling to cope his condition.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
38. All of the aforementioned acts of defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12, their agents, servants, and employees, were carried out under the color of state law.
39. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

40. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
41. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
42. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
44. As a result of the aforesaid conduct by defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 were taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
45. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF**UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983**

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
47. Plaintiff person was searched by defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
48. As a result of the aforesaid conduct by defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
49. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

50. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

51. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 created false evidence against the plaintiff, alleging that he committed the crimes Robbery in the First and Third Degrees, Grand Larceny in the Fourth Degree, Menacing in the Second and Third Degrees, Petit Larceny, Criminal Possession of Stolen Property in the Fifth Degree, and the violation of Harassment in the Second Degree.
52. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff had committed the crimes of Robbery in the First and Third Degrees, Grand Larceny in the Fourth Degree, Menacing in the Second and Third Degrees, Petit Larceny, Criminal Possession of Stolen Property in the Fifth Degree, and the violation of Harassment in the Second Degree, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest him for said offenses. Defendant officers also failed to inform the Kings County District Attorney of evidence exculpating Plaintiff of any crime, including an objectively provable alibi defense and photographic evidence of the real perpetrator of the crime.
53. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 misled the prosecutors by creating false evidence

against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

54. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
55. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

56. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
57. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings. Defendant officers were aware of exculpatory evidence negating Plaintiff's guilt, but failed to share it with the Kings County District Attorney's office in a timely manner.

58. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
59. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
61. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence before the Kings County District Attorney, including false allegations that Plaintiff committed the crimes of Robbery in the First and Third Degrees, Grand Larceny in the Fourth Degree, Menacing in the Second and Third Degrees, Petit Larceny, Criminal Possession of Stolen Property in the Fifth Degree, and the violation of Harassment in the Second Degree.
62. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and

NYPD Officers John and Jane Doe #'s 1-12 did not make a complete and full statement of facts to the District Attorney. In particular, they failed to inform the District Attorney of Plaintiff's objectively provable alibi defense. They also failed to provide to the District Attorney photographic evidence of the true perpetrator of the crime, who clearly was not the Plaintiff.

63. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 withheld exculpatory evidence from the District Attorney.
64. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
65. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
66. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 acted with malice in initiating criminal proceedings against plaintiff.
67. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and

NYPD Officers John and Jane Doe #'s 1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

68. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 lacked probable cause to continue criminal proceedings against plaintiff.
69. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 acted with malice in continuing criminal proceedings against plaintiff.
70. Defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
71. Specifically, defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
72. Notwithstanding the perjurious and fraudulent conduct of defendants NYPD Detective Oliver Muir (Shield # 5809), NYPD Officer David Rodriguez (Tax Reg. # 957090), NYPD Detective Pierce (f/n/u) (Shield #1516), NYPD Detective Molleur (Shield # 181) and NYPD Officers John and Jane Doe #'s 1-12, the criminal proceedings were terminated in Plaintiff's favor on August 30, 2019.

73. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
75. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
76. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

77. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

78. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

79. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.

80. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

81. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.

82. The acts complained of deprived the Plaintiff of their right:

F. Not to be deprived of liberty without due process of law;

G. To be free from seizure and arrest not based upon probable cause;

H. Not to have summary punishment imposed upon them; and

I. To receive equal protection under the law.

WHEREFORE, VINCENT FINA, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
February 10, 2022

Respectfully submitted:

By: /s/ Sydney O'Hagan
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD DETECTIVE OLIVER MUIR (Shield # 5809), 62nd Detective Squad, 62nd Precinct, 1925 Bath Avenue, Brooklyn, NY, 11214-4714

NYPD OFFICER DAVID RODRIGUEZ (Tax Reg. # 957090), 62nd Precinct, 1925 Bath Avenue, Brooklyn, NY, 11214-4714

NYPD DETECTIVE PIERCE (Shield #1516) (f/n/u), Central Investigations Division, 1 Police Plaza, Manhattan, NY 10038

NYPD DETECTIVE MOLLEUR (Shield # 181) (f/n/u), Central Investigations Division, 1 Police Plaza, Manhattan, NY 10038

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
February 10, 2022

Sydney O'Hagan /s/
Sydney O'Hagan, Esq.